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File No.: EXP202302109

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The CITY COUNCIL OF MATARÓ (hereinafter, the complainant), on February 7, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the ASSOCIACIO CANNABICA DEL MARESME ACANNAM, with NIF G65443103 (hereinafter, the defendant), for the installation of a video surveillance system located at CAMÍ DEL MIG 81, FLOOR 1, MATARÓ, BARCELONA, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant provides a Complaint Record dated January 31, 2023, prepared by agents of the LOCAL POLICE OF MATARÓ, which states that the defendant is responsible for a premises that has a video surveillance system with cameras oriented towards the public road, without prior administrative authorization for this and without being properly signposted with the required informative signs of the monitored area.

The documents provided are:

- Reports made by the FFCCSE

SECOND: The defendant entity had been sent a letter indicating the obligations it had regarding data protection and video surveillance, having been notified by postal mail on June 23, 2021, according to the acknowledgment of receipt that appears in the file; however, according to the new complaint, it has not adopted corrective measures.

THIRD: On October 2, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 13 of the GDPR and Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed.

Therefore, considering that the defendant has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

SOLE: On January 19, 2023, the Local Police of Mataró conducted an administrative inspection at the premises of the ASSOCIACIO CANNABICA DEL MARESME ACANNAM located at CAMÍ DEL MIG 81, FLOOR 1, MATARÓ, BARCELONA, verifying that said premises has a video surveillance system. In light of what is recorded in the Inspection Report prepared by the Local Police, which includes photographic documentation, the City Council of Mataró reported the following regarding the aforementioned video surveillance system:

- No informative sign of the video surveillance area is displayed.
- Video surveillance device focused on the public road. The report states that individuals and motor

vehicles can be clearly observed, identifiable by license plates.

- No internal data protection control model is presented.
- No document or record of control of the recorder and/or PC from which the images are viewed in real time, recorded, and stored is presented.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Infringement

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the

event that the monitored space has several entrances, such a sign indicating the video surveillance area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which they are processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of the data must occur both at the time of data collection and in the subsequent processing carried out on them.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Bodies.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be allowed, and in particular, it may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not obtain images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

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The placement of cameras directed towards the private property of neighbors with the purpose of intimidating them or affecting their private sphere without justified cause is therefore not permitted.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Moreover, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, assess them, and, where appropriate, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

Also of interest, in the case of carrying out low-risk data processing, is the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows assessing the situation of the responsible party regarding the personal data processing they carry out, and where applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Administrative infringement

In accordance with the proven facts established during the sanctioning procedure, it is considered that the aforementioned facts violate the provisions of Articles 5.1.c) and 13 of the GDPR, which constitutes the commission of two infringements classified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; C/ Jorge Juan, 6

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- b) the rights of the interested parties in accordance with Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the infringement mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
a) The processing of personal data that violates the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.

VI

Sanction

Article 58.2 of the GDPR establishes:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringements of Articles 5.1.c) and 13 of the GDPR, considering the proven facts, it is deemed that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which indicates:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters

a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the performance of personal data processing.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

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The balance of the circumstances considered, regarding the violations committed by breaching the provisions established in Articles 5.1 c) and 13 of the GDPR, allows for the imposition of a fine of 300 euros (three hundred euros), and another fine of 300 euros (three hundred euros), respectively.

VII

Measures

Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. In this case, the party being reported must proceed, within one month from the receipt of this resolution, to:

- Provide evidence of having removed the camera or video camera system from the current location or having reoriented it, in such a way that the viewing of the images observed demonstrates that public space is not captured.
- Provide evidence of having placed the information device in the monitored areas, with the information required in Article 22.4 of the LOPDGDD, positioning this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence that it maintains the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

It is warned that failure to comply with the requirements of this body may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

VIII

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the ASSOCIACIO CANNABICA DEL MARESME ACANNAM, with NIF G65443103:

For a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 € (THREE HUNDRED euros).

For a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 €

(THREE HUNDRED euros).

SECOND: TO ORDER the ASSOCIACIO CANNABICA DEL MARESME ACANNAM, with NIF G65443103, that pursuant to Article 58.2.d) of the GDPR, within one month, adopt the following measures:

- Provide evidence of having removed the camera or video camera system from the current location or having reoriented it, in such a way that the viewing of the images observed demonstrates that public space is not captured.
- Provide evidence of having placed the information device in the monitored areas, with the information required in Article 22.4 of the LOPDGDD, positioning this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence that it maintains the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

THIRD: NOTIFY this resolution to the ASSOCIACIO CANNABICA DEL MARESME ACANNAM.

FOURTH: Warn the sanctioned entity that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

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If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also

provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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